



File No.: EXP202309722

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the claimant), after receiving a series of phone calls, on April 20, 2023, sent an email to AECORP 005, S.L. (hereinafter, the respondent) requesting access to her personal data, as well as opposing the processing of the same, without receiving a response. On May 31, 2023, a complaint was filed with this Agency against the respondent for not having duly attended to the rights of access and opposition.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, with no record of any response being submitted.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on August 31, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, so that within ten working days, they could present the arguments they deemed appropriate, stating, in summary, that "(...) the activity that this company develops, as a commercial intermediary, involves the hiring of several collaborators who are responsible for attracting clients. These collaborators offer them to enter our website, so that through a security control guaranteed by the company Lleidanetworks, they indicate their data, requesting that we contact them to manage the sale. The clients ultimately contract the service with the company that hires us, in this case, electricity supply as they indicate. Therefore, we do not have more data than the information they provide us; however, if they indicate the phone number that called A.A.A., we can provide them with more information regarding the collaborator who made contact."

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as

well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the respondent for analysis, to respond to this Agency within one month, and to prove that they had provided the claimant with the appropriate response.

The result of this transfer did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on August 31, 2023, for the purposes provided for in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the...

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3/6

Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint accepted.

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the data controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

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4/6

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so.

On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party. Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if the data has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Right of objection

Article 21 of the GDPR, relating to the right of objection, establishes the following:

"1. The data subject shall have the right to object at any time, on grounds relating to their particular situation, to the processing of personal data concerning them which is based on the provisions of Article 6(1)(e) or (f), including profiling based on those provisions. The data controller shall cease processing the personal data unless it demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or for the establishment, exercise, or defense of legal claims.

2. When the processing of personal data is for the purpose of direct marketing, the data subject shall have the right to object at any time to the processing of personal data concerning them, including profiling to the extent that it is related to such marketing.

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5/6

3. When the data subject opposes the processing for direct marketing purposes, the personal data will no longer be processed for such purposes.

4. No later than at the time of the first communication with the data subject, the right indicated in paragraphs 1 and 2 will be explicitly mentioned to the data subject and will be presented clearly and separately from any other information.

5. In the context of the use of information society services, and notwithstanding the provisions of Directive 2002/58/EC, the data subject may exercise their right to object by automated means that apply technical specifications.

6. When personal data is processed for scientific or historical research purposes or for statistical purposes in accordance with Article 89, paragraph 1, the data subject shall have the right, for reasons related to their particular situation, to object to the processing of personal data concerning them, unless such processing is necessary for the performance of a task carried out for reasons of public interest.

VI

Conclusion

The rights procedure is initiated as a consequence of the denial of any of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to the rights of access and objection requested will be analyzed and evaluated, excluding the rest of the issues raised.

In this case, and taking into account the provisions of the first paragraph of this legal basis, it has been established that the claimant requested access to their personal data as well as the objection to the processing of the same, and there is no documentary evidence that allows considering that the respondent has attended to, or denied with justification, such rights.

Thus, it cannot be accepted that the response that corresponds to be given can be manifested on the occasion of a mere administrative procedure, such as the formulation of allegations due to the present procedure, initiated precisely for not properly attending to the request in question.

The aforementioned rules do not allow the request to be overlooked as if it had not been raised, leaving it without the response that the responsible parties must issue, even in the event that there are no data in the files or even in those cases where it does not meet the required criteria, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

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6/6

Given that a copy of the necessary communication that must be addressed to the claimant informing them about the decision taken regarding the exercise of rights request is not attached, it is appropriate to uphold the complaint that originated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Ms. A.A.A. considering that the provisions of Articles 15 and 17 of the GDPR have been infringed and to urge AECORP 005, S.L. with NIF B05470380, to send the claimant a certification within ten working days following the notification of this resolution, addressing the requested rights or denying them with justification indicating the reasons why the requests cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. The non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to AECORP 005, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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